

September 22, 2021
Rachel E. Dickon, Secretary
Federal Maritime Commission
Email: secretary@fmc.gov

RE: "Docket No. 20-15, Comments on PVO Financial Responsibility Rulemaking"

Supplemental Comments By Marc S. Young, PE
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On September 16th, I submitted comments with regard to outstanding amounts due from Royal Caribbean for a cancelled cruise obtained through a travel agent and a cruise that was actually "cancelled" by Royal Caribbean for my daughter, her husband, her two twin daughters and my sister.) Cancelled is not the really the right legal term since it was due to a radical change in the first cruise due to decisions by Royal Caribbean to keep the ship (Anthem of the Seas) in service around the UK for an extended season due to restriction imposed by the CDC in their "Conditional Sail Order". For the later cancellation "Denied Boarding" is the correct term as spelled out in the latest Cruise Contract unilaterally imposed by the cruise line due to them each following RCL's latest health protocols. In the time it took me to write and submit my original comments, and just after their submission credits started flowing to my VISA credit card.

Update on my original Comments:

- 5) Royal Caribbean – Anthem of the Seas – 14 Day Transatlantic Booking ID: 7671602
 - a. Original Sail Date: 6 Nov 2021
 - b. Original Reservation by Phone with Agent at iCruise on 6 Oct 20
 - c. Original Deposit of \$900 on VISA
 - d. Cruise planner \$189.90 VISA on 6/27/21 (2 keys @169.90 each less \$150 OBC)
 - e. Final Payment of \$1,159.08 on 6/28/21 On VISA
 - f. Transfers to/from ship and Airport by RCL \$247.80 on 6/28/21 on VISA
 - g. Travel Insurance (by iCruise) \$190.32 on 6/28/21 on VISA
 - h. **Canceled by the Cruise Line on 8/5/21** (No explanation other than call by agent)
 - i. iCruise refunded the travel Insurance of \$190.32 on VISA on Aug 7, 2021
 - j. Royal Caribbean still owes me \$2,496.68 (41 days since full refund requested)
 - i. On September 15, 2016 (2) credits to my VISA card of \$450.00 each were made. I have had to assume that these were for the \$900 deposit iCruise charged on my VISA for this cruise.
 - ii. On September 15, 2016 (2) credits to my VISA card of \$448.99 each were made. I have had to assume that these were for the final cruise fares (less the taxes, fees and port expenses) that iCruise charged on my VISA (less about 1 cent each for each fare we should have been refunded).
 - iii. We were shorted the taxes, fees and port expense, by RCL of \$261.08 (plus the \$0.02 for the fare) which iCruise has addressed with Royal and they claim they are processing for payment. When is the question? Why was it not refunded with these initial payments?
 - iv. Royal Caribbean had not acknowledged the Transfers to/from ship and Airport by RCL \$247.80 on 6/28/21 on VISA was due in discussions with iCruise (according to letter from iCruise-customer service to me in which only the

\$261.10 in iii above is addressed). I've had to address it with iCruise again several times.

- v. \$189.80 for the Crusie Planner purchase originally not addressed by iCruise since it was a direct purchase from RCL. In contact with RCL on 9-18-2021, I addressed it again with the RCL online agent and I am told it is now scheduled for refund but my again take to the end of the month.
- vi. So I am currently still waiting on \$698.70 after 45 days.

2) Royal Caribbean – Liberty of the Seas/Independence of the Seas – 7 Day Western Caribbean (Family Cruise)

Booking IDs: 6312882, 1960602

See original comments for a.-w.

- x. On the basis of that positive test my daughter had to answer my granddaughter online health questionnaire as having tested positive on her online check-in health questionnaire the day before the cruise. My daughter, her husband, my daughter for the other twin and my sister who had made the unfortunate decision to stay with my daughter at her house prior to the cruise after traveling down from NW Arkansas, all had to report exposure within 14 days to some with COVID. Needless to say, all five were noted on their final online check-in as being "denied boarding".

See original comments for (y. through ff.)

Originally, in gg. I stated I was awaiting on an agreed upon amount of \$8,108.70 for both the cancelled fares and the canceled online internet and restaurant cancellations.

As noted above, although they had not shown up on my VISA online account prior to my September 16 comments, effective September 9 – September 14 and back posted to my account were the following amounts:

- i. On September 12, a refund of \$379.77 and \$121.64 were posted to my account. (I cannot tie these refunds to any agreed upon amount with RCL). In subsequent phone call today (9/22/2021) the \$121.64 was stated as being a refund for pre-paid gratuities, yet it does not match the amount due back from either reservation:
 - ID # 1960602 – 2 persons denied boarding x 7 days x \$17.50 = \$245.00
 - ID # 6315380 – 3 persons denied boarding x 7 days x \$17.50 = \$367.50
- ii. On September 14, a refund amounts of \$142.13, \$99.98, \$18.99, \$5,201.97, and \$243.28. The only ones I can tie to any correct amount from charges or cruise receipts that was agreed with the post is the following:
 - \$99.98 refund was due to the pre-paid reservation for a specialty dining for 2 denied boarding under Reservation 1960602.
 - \$18.99 was a refund for a gift purchased for my granddaughter on Reservation # 1960602. We received that gift in the suite along with another and they were taken home and given to the granddaughters. The Post Crusie Reconciliation team was notified of this discrepancy. We were overpaid by \$18.99 with this refund.
 - \$243.28 refund matches the taxes, fess and port expenses that was shown on the final cruise receipt for Reservation 1960602.

- Of the remaining amounts the closest that can be ascertained are:
 1. The \$142.13 refund was possibly due to the pre-paid reservation for a specialty dining for 3 denied boarding under Reservation 6315380. If true we were shorted \$7.84. e.g. 3 persons x 49.99 = \$149.97.
 2. The \$5,201.97 refund may have been an error in the calculated amount of the refund by RCL accounting since after subtracting the one person not denied boarding (who had not been exposed) whose final cruise receipt fare was listed as \$699.00 and if subtracted from Reservation 6315380 cruise fare total of 5,711.00 should have resulted in a remaining fare to be refunded of \$5,012.00. Possibly the 0 and 2 were transposed, but it does not explain the 97 cent error. The difference in the two is \$189.97 in overpayment. There is no explanation for this discrepancy by the agents I have called who claims to have followed what the post resolution team agreed upon.
- iii. On September 14, 2021, an additional refund of \$1,481.88 which was reported credited as of 9/16/2021.
 - This refund can only be attributable to the refund of the fare for the two denied boarding under Reservation 1960602. That cruise fare is two persons denied boarding at \$699.00 each. That is equal to a total of \$1,398.00. Yet there appears to be an overpayment of \$83.88. Again no justification.
- iv. What is additionally missing from the refunds is the difference in taxes, fees and port expenses for the three denied boarding on Reservation 6315380. Then it is the total final Cruise Receipt amount of \$417.48 less the amount of \$104.38 for the remaining person in that suite. This is \$313.11 that should be refunded back. No amount matches that amount.
- v. What is missing is the Cruise Planner Refunds for an Internet package that I had to re-buy onboard that caused extensive problems. They tried to charge our friend's onboard account for it. It was finally reversed and charged to my On Board Account.
 - The amount I had purchased under my daughter's name for the other suite was had been prepaid and I was told was to be refunded due to her denied boarding was \$279.86. It had been charged on my VISA card along with the Gift for her other daughter at \$18.99. The total charge to my card originally was \$298.85. There is no refund for that original purchase on my card.

Only by totaling all the refunds paid to the VISA card and subtracting the ones that were paid for the iCruise amounts paid (as verified by iCruise) can I determine that I have been paid only \$7,789.64 for the *Denied Boarding* claims. The Total of all refunds for the two cruises now being simultaneously refunded (three reservations) are now at \$9,487.62 versus the \$10,605.38 noted in my preceding comments on September 16.

This makes the total amount of refunds I am still currently awaiting from Royal Caribbean equal to \$1,117.76, even after they have been supposedly all been "refunded".

What also cannot be understated is that without the PVO, e.g. Royal Caribbean supplying even the barest of reconciliation of their latest cruise receipt and other online purchases both to passengers and cruise travel agent's (if there is one), the average citizen probably finds it near impossible to follow the refunds to determine if all are being fully repaid.

Again, as stated in my earlier comments, the cited cases show how many payments are being made requiring extensive efforts on the part of each passenger due a repayment and sometimes on multiple original sources of payment. The accounting alone can be time consuming and an almost impossible task to follow for all except the most astute in bookkeeping or accounting. There is no compensation for this time we are forced to spend and the difficulty in reaching anyone at the cruise lines that are authorized to take action when an error is made on their part. The errors have been many.

Clearly, if the rules by the Commission are to place requirements on the timing of refunds for non-performance by the PVOs, then they should also include a requirement for documentation and a rigorous audit trail that each client has access to on demand. Make them have a dedicated team for refunds that they have to make available to anyone owed a refund.